

To: privacy@github.com

Cc: dpo@github.com

Subject: Data Subject Access Request (GDPR Art. 15) and Statement of Reasons Request (DSA Art. 17) — Account 'skovnats' / Support Ticket #4253477

Berlin, 27 May 2026

GitHub, Inc.

88 Colin P. Kelly Jr. Street

San Francisco, CA 94107, USA

— and, as EU controller / EU establishment / EU representative —

GitHub B.V.

Prins Bernhardplein 200

1097JB Amsterdam, The Netherlands

— and Data Protection Officer (dpo@github.com)

Data subject and account identification

Field	Value
Full name	Dr. Artiom Kovnatsky
Postal address	Dahlmannstr. 17, 10629 Berlin, Germany
Correspondence email	artiom.kovnatsky@gmail.com
GitHub account (login)	skovnats
Registered account email	skovnats@gmail.com
Linked PayPal billing identity	artiom.kovnatsky@gmail.com
Wirtschafts- Identifikationsnummer (per GitHub receipt of 09.05.2026)	DE405667512

Relevant Support Ticket	#4253477 ("Urgent: Account Flagged — Professional development blocked (stenon) (Reinstatement request)")
Approximate restriction period	7 April 2026 – 24 April 2026
GitHub statement on file (24 April 2026, ticket #4253477)	"Sometimes our abuse detecting systems highlight accounts that need to be manually reviewed. We've cleared the restrictions from your account, so you have full access to GitHub again."

Dear GitHub Privacy Team and Data Protection Officer,

I am the data subject and account holder identified above. I write to exercise rights granted to me under European Union law. This letter combines:

Part A — Subject access and related rights under Regulation (EU) 2016/679 (General Data Protection Regulation, "GDPR"), in particular Articles 12, 13, 14, **15**, 16, 17, 18, 19, **20**, 21, **22**, 30, 33, 34, 77, and 82, read together with Recitals 60–63 and 71; and the German Bundesdatenschutzgesetz (BDSG) provisions implementing those rights.

Part B — Statement of reasons and related transparency rights under Regulation (EU) 2022/2065 (Digital Services Act, "DSA"), in particular Articles **14**, 16, **17**, **20**, 21, 23, and 24(5), read together with Recitals 53–66; and the German Digitale-Dienste-Gesetz (DDG) provisions implementing those rights.

I also rely, where relevant, on Articles 8 and 47 of the Charter of Fundamental Rights of the European Union.

The substantive subject-matter of this request is the temporary restriction of my account "skovnats" between approximately 7 April 2026 and 24 April 2026, as documented in GitHub Support ticket #4253477.

Part A — Request under Article 15 GDPR and accompanying provisions

Pursuant to Article 15(1) GDPR, I request confirmation as to whether personal data concerning me is being processed by GitHub, Inc. and/or its affiliates (including Microsoft

Corporation and GitHub B.V.) and, where it is, **access to that personal data** together with the following information specified in Article 15(1)(a)–(h) and Article 15(2):

1. **The purposes of the processing** of my personal data, including any processing connected to abuse detection, integrity/anti-abuse systems, account restriction, and automated decision-making.
2. **The categories of personal data concerned**, including but not limited to:
 - account profile and authentication data (login "skovnats", linked email addresses, two-factor authentication data, SSH key fingerprints);
 - access and session logs (IP addresses, User-Agents, geolocation indicators, device fingerprints);
 - billing data linked to the account, including the PayPal billing identity and Wirtschafts-Identifikationsnummer DE405667512;
 - any moderation, abuse-detection, trust-and-safety, integrity, or risk-score records associated with the account;
 - any classifier outputs, model scores, flags, labels, signals, or decisions produced by automated systems and applied to my account, **including those produced or applied between 1 February 2026 and 30 April 2026**;
 - any reports, abuse notices, DMCA notices, or third-party complaints concerning my account or any repository under my account;
 - all internal notes, comments, tickets, escalations, and communications relating to my account, including but not limited to those produced in connection with Support ticket #4253477.
3. **The recipients or categories of recipients** to whom my personal data have been or will be disclosed, in particular any disclosure to:
 - other entities within the Microsoft group;
 - subprocessors and service providers (including cloud, anti-abuse, classifier, or trust-and-safety vendors);
 - law-enforcement, intelligence, or government authorities in any jurisdiction.
4. Where applicable, the fact that personal data are transferred to a third country or international organisation, and the **appropriate safeguards** under Articles 44–49 GDPR (e.g. Standard Contractual Clauses, adequacy decision references).
5. The **envisaged storage period** for each category of data, or, where this is not possible, the criteria used to determine that period.

6. Confirmation of my rights under Articles 16, 17, 18, 20, 21 and 22 GDPR, and of my right to lodge a complaint with a supervisory authority (Article 77 GDPR).
7. Where the personal data are not collected from me directly (e.g. reports, third-party signals, classifier outputs), **any available information as to their source** (Article 15(1)(g) GDPR).
8. **In relation to automated individual decision-making, including profiling, referred to in Article 22(1) and (4) GDPR** — and specifically in relation to the account restriction documented in ticket #4253477 — I request, pursuant to Article 15(1)(h) GDPR and Article 22(3) GDPR:
 - confirmation of whether the restriction was, in whole or in part, based on automated processing;
 - **meaningful information about the logic involved** in that automated processing, including the identity, purpose, and operating principle of the classifier(s), rule(s), or signal(s) that triggered the action;
 - the **significance and the envisaged consequences** of such processing for me;
 - the **input features** considered and the **output(s)** generated for my account (including any scores, probabilities, or category labels);
 - the human-review records, if any, that preceded the action and that preceded its reversal on or about 23–24 April 2026 (the name or pseudonymous identifier of the reviewer is not requested; the substantive record is);
 - confirmation of whether the safeguards required by Article 22(3) GDPR were applied at the time of the action.

I request that the response be provided **in a commonly used electronic form** (Article 15(3) GDPR), free of charge (Article 12(5) GDPR), and **within one month** of receipt of this request (Article 12(3) GDPR). If you intend to invoke the extension permitted by Article 12(3), please inform me within that one-month period of the reasons.

Personal data within the meaning of Article 4(1) GDPR includes **pseudonymised data** that can be attributed to me through additional information (Recital 26 GDPR); I expressly include pseudonymised records in the scope of this request.

To verify identity for security purposes, I confirm that I am the holder of the account "skovnats" and I am willing to provide reasonable proof on request (for example, signed confirmation from my registered email skovnats@gmail.com, confirmation through the existing Support ticket #4253477, or other proportionate means consistent with the data-minimisation principle of Article 5(1)(c) GDPR).

Part B — Request under Article 17 DSA and accompanying provisions

The temporary restriction of my account on 7–24 April 2026 constitutes a "restriction of the provision of the service" within the meaning of Article 17(1)(b) DSA. Pursuant to Articles 17(1) and 17(3) DSA, I am entitled to a **clear and specific statement of reasons** for that restriction.

The communication on file from GitHub Support of 24 April 2026 — *"Sometimes our abuse detecting systems highlight accounts that need to be manually reviewed. We've cleared the restrictions from your account."* — does not meet the requirements of Article 17(3) DSA. I therefore request, pursuant to Articles 17(1) and 17(3)(a)–(f) DSA, a written statement of reasons containing in particular:

1. **The facts and circumstances** relied on in taking the decision to restrict my account (Art. 17(3)(b) DSA), including whether the restriction was triggered by:
 - a content-based signal (and, if so, identification of the content or repository concerned, by URL or identifier);
 - an account-behaviour signal (e.g. access patterns, automation, rate-limit triggers, login signals);
 - a third-party notice or report (and, where applicable, the category of notifier under Article 16 DSA);
 - any other category of signal.
2. **Information on the use of automated means** in taking the decision (Art. 17(3)(c) DSA), including whether the decision was taken in respect of conduct detected or identified using automated means.
3. **A reference to the legal ground or contractual ground** relied on (Art. 17(3)(d)–(e) DSA), in particular the specific provision of GitHub's Terms of Service, Acceptable Use Policies, or other contractual instruments invoked.
4. **Clear and user-friendly information on redress possibilities** (Art. 17(3)(f) DSA), in particular access to the internal complaint-handling system under Article 20 DSA and to out-of-court dispute settlement bodies under Article 21 DSA.
5. **The "Permanent Unique Identifier" (PUID)** of the statement of reasons assigned by your systems, and, if the statement of reasons has been submitted to the **DSA**

Transparency Database maintained by the European Commission under Article 24(5) DSA, a reference enabling me to locate it there.

Independently of Article 17 DSA, I rely on:

- **Article 14(4) DSA** — that GitHub shall apply and enforce its terms and conditions "in a diligent, objective and proportionate manner";
 - **Article 16 DSA** — to the extent that any third-party notice or report contributed to the restriction;
 - **Article 20 DSA** — my right to access the internal complaint-handling system; I hereby formally **submit a complaint** under Article 20 against the restriction of 7–24 April 2026, and request access to the procedure;
 - **Article 21 DSA** — my right to refer the dispute to a certified out-of-court dispute settlement body in due course;
 - **Article 23 DSA** — to the extent that anti-abuse measures may have been applied disproportionately or without the required safeguards.
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Specific items requested in respect of the 7–24 April 2026 restriction

Without prejudice to the broader access rights above, I specifically request the following items in respect of Support ticket #4253477 and the underlying action:

- (a) The internal record of the action(s) applied to the account "skovnats" between 1 March 2026 and 30 April 2026, with timestamps (UTC), action type, applied scope (account-level, repository-level, feature-level — including the disabling of GitHub Copilot and the halting of GitHub Actions referenced in the ticket), and the unique system identifier(s) of each action.
- (b) The identity, version, and operating description of any classifier(s), heuristic(s), or rule(s) whose output contributed to the action(s) in (a), together with the input feature categories considered and the output values produced for my account.
- (c) The records of human review, if any, that preceded the action and that preceded the reversal of 23–24 April 2026, including timestamps and outcome.
- (d) Any third-party notice, report, or signal that contributed to the action(s) in (a), including the category of notifier under Article 16 DSA and the substantive content of the notice (redacted as necessary to protect the rights of third parties).

(e) The Statement of Reasons that GitHub issued, or should have issued, under Article 17 DSA in respect of the action(s) in (a), and its Permanent Unique Identifier (PUID).

(f) The complete record of Support ticket #4253477, including any internal notes or escalation records not visible in the user-facing ticket interface.

Format, deadline, and escalation

I request that responses be provided:

- in a commonly used electronic form (Article 15(3) GDPR; Article 17(1) DSA in writing);
- in English;
- free of charge (Article 12(5) GDPR);
- **within one month of receipt of this request**, i.e. by **27 June 2026**, in accordance with Article 12(3) GDPR; the statement of reasons under Article 17 DSA being due without undue delay.

If you intend to invoke the extension permitted by Article 12(3) GDPR, please notify me within the one-month period together with the reasons for the delay.

Please be informed that, in the event of non-response, incomplete response, or refusal:

- I reserve the right to lodge a complaint with the **Berliner Beauftragte für Datenschutz und Informationsfreiheit (BlnBDI)** under Article 77 GDPR and § 19 BDSG, and with any other competent supervisory authority within the European Data Protection Board cooperation framework;
- I reserve the right to lodge a complaint with the **Digital Services Coordinator at the Bundesnetzagentur** (dsc.bund.de) under Article 53 DSA and the Digitale-Dienste-Gesetz, and to refer the matter to a certified out-of-court dispute settlement body under Article 21 DSA;
- I reserve all judicial remedies under Articles 77–79 GDPR and Articles 54 and 86 DSA, including remedies for material and non-material damage under Article 82 GDPR;
- I reserve all rights under §§ 812 ff. BGB in respect of subscription fees collected during the period of access restriction.

I confirm that this letter is to be treated as a formal data subject access request and a formal statement-of-reasons request, and that the one-month period under Article 12(3) GDPR begins on the date of your receipt of this email.

Please acknowledge receipt of this letter and assign it a reference number.

Yours sincerely,

Dr. Artiom Kovnatsky

Dahlmannstr. 17, 10629 Berlin

artiom.kovnatsky@gmail.com

Enclosures / referenced records:

1. GitHub Support ticket #4253477 (opened 07.04.2026, closed 24.04.2026).
2. GitHub Pro receipts of 09.04.2026 (Transaction 48F09434A3939605R) and 09.05.2026 (Transaction 8HH136801E312650N).